

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY 2 GO CARGO CORP.,

Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,

Respondent.

COMPLAINANT’S NOTICE OF CORRECTED FILINGS AND SUBMISSIONS

Complainant, Way 2 Go Cargo Corp. (“Complainant”) through undersigned counsel, files this Notice of Corrected Filings and Submissions, and states as follows:

1. On September 4, 2026, Complainant submitted its Brief (“Opening Brief”), Proposed Findings of Fact (“CPFF”), and Confidential Appendix (the “Confidential Appendix”).
2. Pursuant to the instructions provided in paragraph 7 of the Initial Order issued on July 31, 2025, Complainant’s Appendix was submitted as one PDF document with sequential bates numbers beginning with “CX”, and six Excel documents that included the corresponding bates numbers in the file names.
3. Due to the size of the PDF exceeding the limit of attachment sizes that can be included in one email, the PDF and six Excel documents comprising the Appendix were transmitted via a ShareFile link included in the service email sent to counsel for Respondent and the Secretary and presiding officer on September 4, 2026.
4. Due to undersigned counsel’s inadvertent misunderstanding of the instructions concerning confidential filings in the Initial Order, Complainant failed to submit a motion for confidential treatment together with its September 4 submission. Instead, Complainant submitted

only a version of the Appendix that indicated what information it sought to treat as confidential by marking the pages and text with a red box and intended to submit the public version of the Appendix within three business days as required by 46 C.F.R. § 502.5(a)(2)(ii).

5. On September 9, the Administrative Law Judge issued the Order Requiring Complainant to Correct Filings, ordering Complainant to re-file a public version and confidential version of any document that contains information it wishes to keep confidential along with a motion for confidential treatment.

6. On September 15, 2026, the Office of Administrative Law Judges sent an email to counsel of record, indicating that the Commission was not in receipt of all the documents referenced in the CPFF, and requested that the complete record be provided.

7. Upon review of the live ShareFile link submitted on September 4, the complete, bates-stamped Appendix, including all documents referenced in the CPFF and Opening Brief were included in the ShareFile link included in Complainant's September 4 service email.

8. Complainant hereby notifies that in an abundance of caution, it submits a new ShareFile link including all contents that comprise the Appendix as follows:

- a. "Complainant's Appendix (Confidential)",
- b. "Complainant's Appendix (Public)",
- c. "(CX0213) Embarques W2GO - Finalizados pela Oak (2) (1) [CONFIDENTIAL]",
- d. "(CX0213) Embarques W2GO - Finalizados pela Oak (2) (1) [PUBLIC]",
- e. "(CX0214) Embarques W2GO - Finalizados pela Oak [CONFIDENTIAL]",
- f. "(CX0214) Embarques W2GO - Finalizados pela Oak [PUBLIC]",
- g. "(CX0550) All Oak Shipments [CONFIDENTIAL]",
- h. "(CX0550) All Oak Shipments [PUBLIC]",

- i. “(CX0728) 12 - Embarques W2GO - Finalizados pela Oak (2) (1) [CONFIDENTIAL]”,
- j. “(CX0728) 12 - Embarques W2GO - Finalizados pela Oak (2) (1) [PUBLIC]”,
- k. “(CX0934) Complainant's Corrected Demonstrative Spreadsheet I”, and
- l. “(CX7014) Complainant's Demonstrative Spreadsheet II”

9. In accordance with the September 9 Order, Complainant notifies of filing the Motion for Confidential Treatment, which includes the Confidential Request Table pursuant to paragraph 38 of the Initial Order.

10. In the process of preparing the corrected filings, counsel for Complainant realized that one of the Appendix Excel documents included mistakes that also appeared in the CPFF and Opening Brief.

11. Specifically, the Opening Brief, CPFF, and Complainant's Demonstrative Spreadsheet (CX0934), which consolidates information from the record by reference to the Appendix, were prepared based on an earlier draft of the Appendix that had been incorrectly bates stamped by error of the software used to bates stamp the Appendix, which resulted in 200 pages sharing the same bates stamp numbers.

12. Following detection and correction of the incorrect bates stamps, the citations in the CPFF and Opening Brief were updated, but undersigned Counsel inadvertently failed to update the spreadsheet's (CX0934) citations to the Appendix.

13. As such, the version of the spreadsheet (CX0934) submitted on September 4, included several citations that did not match the record and, due to the duplicated bates stamps, referenced a single payment record twice in error. This resulted in an extra \$5,420.46 being included in the total that also appeared in the Opening Brief and CPFF.

14. Complainant has carefully verified all citations in each of its submissions, and

hereby notifies that the Opening Brief, CPFF, and Complainant's Demonstrative Spreadsheet (CX0934) have been corrected as follows:

- a. *Complainant's Corrected Demonstrative Spreadsheet I (CX0934)*: the original spreadsheet includes two columns and an incorrectly duplicated amount of \$5,420.46 in cell A:53. Row 53 and the \$5,420.46 amount has been removed from the corrected spreadsheet, which now also includes three columns, separating the Payment Confirmation amount from the record citation to it, so as to ensure an accurate total sum of \$411,347.29 in cell B:53. Throughout the spreadsheet, citations to the earlier draft of the Appendix were updated to reflect the corrected bates numbers.
- b. *Complainant's Corrected Brief*: All references to the \$416,757.75 Payment Confirmations total have been updated to reflect the corrected total of \$411,347.29, on pages 7, 18, 19, 23, and 24. Citations to incorrect bates numbers and descriptions of Complainant's Demonstrative Spreadsheet I (CX0934) and Complainant's Demonstrative Spreadsheet II (CX7014) were updated on the last paragraph of page 17 and the first three paragraphs of page 18. A missing citation was added in the second paragraph on page 19.
- c. *Complainant's Corrected Proposed Findings of Facts*: Citations to incorrect bates numbers in paragraph 55 were updated. Reference to the \$416,757.75 Payment Confirmations total has been updated to reflect the corrected total of \$411,347.29 in paragraph 57.

15. Complainant certifies that aside from the specific information detailed above, no other changes have been made to the Opening Brief, CPFF, and the Excel document (CX0934).

Dated: September 16, 2026.

Respectfully submitted,

EPGD Attorneys at Law, P.A.
Attorney for Complainant
777 SW 37th Ave., Ste. 510
Miami, FL 33135
T: (786) 837-6787
F: (305) 718-0687
jennifer@epgdlaw.com
mgomez@epgdlaw.com

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.
Florida Bar No.: 1003369

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at ron@hink.legal on this 16th day of September 2026.

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.